

TENTATIVE RULINGS

FOR: August 27, 2026

If you do not see a tentative ruling for a scheduled matter, then attendance at the hearing is required.

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“Recording Court proceedings (whether by Zoom’s AI Meeting Summary functionality or by any other means) is PROHIBITED without express permission from a judicial officer. (Cal. Rules of Court, Rule 1.150(c) & (d))

PROBATE CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Conservatorship of Briana Orozco Jimenez

21PR000166

REVIEW HEARING

TENTATIVE RULING: After a review of the matter, the Court finds the Conservator is acting in the best interest of the Conservatee. Thus, the case is set for a Review - Biennial hearing in two years, on August 25, 2028, at 8:30 a.m. in Dept. A. The Court Investigator shall

prepare a biennial investigator report for the next hearing date. The Clerk is directed to send notice to the parties.

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In The Matter of the Aidan Samson Kelly Trust
Established Under the Christopher Kelly 2010 Annuity et al

25PR000244

PETITION FOR APPROVAL OF FEES AND COSTS OF GUARDIAN AD LITEM

TENTATIVE RULING: Good cause appearing, and no opposition or objection being on file, the petition is GRANTED. The Court will sign the proposed order.

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In The Matter of The Wempe Family 2013 Trust

26PR000128

PETITION FOR ORDER DETERMINING TRUST'S TITLE TO PROPERTY (HEGGSTAD)

TENTATIVE RULING: The petition is GRANTED.

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In The Matter of The Thomas E Dawson Trust

26PR000144

PETITION FOR ORDER DETERMINING TRUST'S TITLE TO PROPERTY

TENTATIVE RULING: The petition is GRANTED.

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Conservatorship of Deborah Denise Morris

26PR000166

[1] AMENDED PETITION FOR APPOINTMENT OF PROBATE CONSERVATOR OF THE PERSON AND ESTATE

TENTATIVE RULING: Based on the matters set forth in the Report of the Court Investigator, the matter is CONTINUED to October 1, 2026, at 8:30 a.m. in Dept. A.

[2] PETITION FOR APPROVAL OF COMPROMISE OF CLAIM

TENTATIVE RULING: The matter is CONTINUED to October 1, 2026, at 8:30 a.m. in Dept. A. There is no written attorney fee agreement in the file. The Court requires a review of the agreement prior to granting a compromise petition. Counsel is directed to file a copy of the attorney fee agreement at least five Court days prior to the continued hearing date.

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Caroline Geitner v. Tia Sonesouphab et al

24CV002118

MOTION FOR RELIEF FROM WAIVER OF OBJECTIONS TO DEFENDANT’S REQUEST FOR PRODUCTION OF DOCUMENTS

TENTATIVE RULING: The motion is GRANTED.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiff Caroline Geitner moves, pursuant to Code of Civil Procedure section 2031.300, subdivision (a), for relief from waiver of her objections to Requests for Production of Documents (Set Two) propounded by Defendant St. Joseph Health Northern California, LLC. (St. Joseph). Ms. Geitner so-moves on grounds that “the one-day delay in serving verified responses to Defendant’s requests was the result of inadvertent mistake and excusable neglect. Furthermore, Plaintiff has served substantially compliant responses to Defendant’s requests, and Defendant will not be prejudiced by this Court granting relief . . .” (Notice of Motion at 2:8-13.)

The Court finds, from the evidence presented, that Ms. Geitner has served a response that is in substantial compliance with the relevant provisions of the Civil Discovery Act, and that her failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc., § 2031.300, subd. (a).)

The Motion is, therefore, GRANTED.

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Jessica Fernandez v. SRGA Resort LP et al

26CV001032

[1] DEFENDANT AUBERGE RESORTS LLC’S MOTION TO COMPEL ARBITRATION

TENTATIVE RULING: The motion is DENIED.

Defendant Auberge Resorts LLC (Auberge) moves for an order compelling Plaintiff Jessica Fernandez to arbitrate those claims asserted against Auberge through the operative First Amended Complaint (FAC) in this action.

A. LEGAL BACKGROUND

A proceeding to compel arbitration is, in essence, a suit in equity to compel specific performance of a contract. (*California Teachers Assn. v. Governing Bd.* (1984) 161 Cal.App.3d 393, 399.) On a motion to compel arbitration, supported by prima facie evidence of a written agreement to arbitrate the underlying controversy, the court must determine whether the agreement exists and, if any defense to its enforcement is raised, whether the agreement is enforceable. (*Rosenthal v. Great Western Financial Sec. Corp.* (1996) 14 Cal.4th 394, 413.) The moving party bears the burden of proving the existence of the agreement by a preponderance of the evidence. (*Ibid.*) The opposing party bears the burden of producing evidence of and proving (by a preponderance) any fact necessary to any defense raised. (*Ibid.*) California law strongly favors arbitration. (*Prima Donna Development Corp. v. Wells Fargo Bank, N.A.* (2019) 42 Cal.App.5th 22, 35 (*Prima Donna*).)

B. ANALYSIS

1. Auberge Fails to Provide the Court with a Competent Copy of the Arbitration Agreement

Auberge presents evidence that the Arbitration Agreement signed by Plaintiff was in Spanish. (See Declaration of Thomas Donovan at ¶ 5 (Donovan Decl.).) While Auberge provides a purported English language translation, that translation is not certified under oath by a qualified interpreter. (See Cal. Rules of Ct., rule 3.1110(g) [“Exhibits written in a foreign language must be accompanied by an English translation, certified under oath by a qualified interpreter”]; see also Code Civ. Proc., § 2015.5 [requirements for written certification under oath].)

Ordinarily, the Court grants a moving party leave to correct defects in the form of its presentation of evidence. However, because the Court, here, finds that the Motion fails on independent, substantive, grounds, discussed below, granting Auberge leave to file a certification, under oath, of the translation would not alter the Court’s ruling.

2. Auberge is Not a Party to the Subject Arbitration Agreement

“The scope of arbitration is a matter of agreement between the parties. A party can be compelled to arbitrate only those issues it has agreed to arbitrate.” (*Larkin v. Williams, Woolley, Cogswell, Nakazawa & Russell* (1999) 76 Cal.App.4th 227, 230 (*Larkin*).) “There is no public policy in favor of forcing arbitration of issues the parties have not agreed to arbitrate. [Citation.] It follows that when presented with a petition to compel arbitration, the trial court’s first task is to determine whether the parties have in fact agreed to arbitrate the dispute.” (*Gorlach v. Sports Club Co.* (2012) 209 Cal.App.4th 1497, 1505.) “[W]ith limited exceptions only parties to an arbitration agreement can enforce it or be required to arbitrate.” (*Jones v. Jacobson* (2011) 195 Cal.App.4th 1, 17.)

Auberge is not a party to the subject arbitration agreement (Arbitration Agreement). (See Donovan Decl. at ¶ 5, Exhs. A and B.) In the Conclusion section of its supporting memorandum (Support Memo) Auberge asserts that “Auberge, as an affiliated entity, is entitled to enforce this

agreement.” (*Id.* at 15:4.) Auberge does not, however, provide through its moving papers any discussion, argument, or citation to evidence in support of the assertion.

3. Equitable Estoppel Does Not Apply

Auberge argues that even as a non-party, it is entitled to enforce the Arbitration Agreement as against Plaintiff pursuant to the doctrine of equitable estoppel. (See Support Memo at 9:4, *et seq.*) “Under that doctrine . . . a nonsignatory defendant may invoke an arbitration clause to compel a signatory plaintiff to arbitrate its claims when the causes of action against the nonsignatory are ‘intimately founded in and intertwined’ with the underlying contract obligations.” (Citations.) ‘By relying on contract terms in a claim against a nonsignatory defendant, even if not exclusively, a plaintiff may be equitably estopped from repudiating the arbitration clause contained in that agreement.’ (Citation.) ‘The rule applies to prevent parties from trifling with their contractual obligations.’ (Citation.)” (*JSM Tuscany, LLC v. Super. Ct.* (2011) 193 Cal.App.4th 1222, 1237 (*JSM*)). The archetypal fact pattern to which the doctrine is applied involves a Plaintiff signatory suing a non-signatory defendant for breach of the contract containing the arbitration provision. (See, *e.g.*, *Boucher v. Alliance Title Co., Inc.* (2005) 127 Cal.App.4th 262, 265.) “‘The plaintiff’s actual dependence on the underlying contract in making out the claim against the non-signatory defendant is...always the *sine qua non* of an appropriate situation for applying equitable estoppel.’” (*Goldman v. KPMG, LLP* (2009) 173 Cal.App.4th 209, 229, quoting *In re Humana Inc. Managed Care Litigation* (11th Cir. 2002) 285 F.3d 971, emphasis omitted.)

Auberge fails to persuade the Court that Plaintiff’s claims against it are dependent on the Arbitration Agreement. To the contrary, the Court can find no suggestion in the allegations of the FAC that Plaintiff’s claims arise out of the Arbitration Agreement or that Plaintiff relies on the agreement in stating any of her claims. Auberge fails to cite to authority supporting its argument that Plaintiff’s assertion of the same claims against co-defendant SRGA, who *has* agreed to arbitrate such claims, constitutes grounds for invoking the doctrine in Auberge’s favor. The Court is aware of no such authority.

Metalclad Corp. v. Ventana Environmental Organizational Partnership (2003) 109 Cal.App.4th 1705, (*Metaclad*), relied on by Auberge, is distinguishable. In *Metaclad*, the plaintiff’s claims against the signatory and non-signatory defendants all arose out of the contract containing the arbitration provision that the non-signatory defendants sought to enforce against the plaintiff. (See *id.* at p. 1717 [“Metalclad’s breach of contract claim against Ventana could not be more ‘intimately founded in and intertwined with’ the underlying Geologic contract”].)

Jarboe v. Hanlees Auto Group (2020) 53 Cal.App.5th 539 (*Jarboe*) the other case cited by Auberge in its Support Memo, supports the Court’s conclusion. “Jarboe’s claims against the company, DKD of Davis, arising from his employment agreement will proceed to arbitration. The claims against other defendants for which there is no agreement to arbitrate will not. The mere fact that the claims against Leehan of Davis and the other defendants may be related to the claims DKD of Davis is arbitrating against Jarboe does not compel application of equitable estoppel.” (*Id.* at p. 55.)

4. The Court is Barred from Compelling Plaintiff to Arbitrate Her Claims by the Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act of 2021

Finally, the Court is barred, by the Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act of 2021 (EFAA), from compelling Plaintiff to arbitrate her claims over her objections.

“At the election of the person alleging conduct constituting a sexual harassment dispute . . . no predispute arbitration agreement or predispute joint-action waiver shall be valid or enforceable with respect to a case which is filed under Federal, Tribal, or State law and relates to . . . the sexual harassment dispute.” (9 U.S.C. § 402, subd. (a).) “The term ‘sexual harassment dispute’ means a dispute relating to conduct that is alleged to constitute sexual harassment under applicable Federal, Tribal, or State law.” (9 U.S.C. § 401.)

The Court finds that Plaintiff has alleged conduct constituting a sexual harassment dispute. (See, *e.g.*, FAC at ¶¶ 12-14, 18, 25, Fourth Cause of Action, Exhibit A.) As such, by a plain reading of the EFAA, at Plaintiff’s election, the Arbitration Agreement asserted here is unenforceable.

Auberge argues that the facts alleged “are insufficient to state a claim for sexual harassment.” (*Id.* at 1:15-16.) Auberge fails, however, to discuss the elements of a claim for sexual harassment, and fails to specifically identify any element that Plaintiff fails to allege. Rather, Auberge merely asserts that “Plaintiff’s First Amended Complaint provides minimal support for her claim of sexual harassment.” (Support Memo at 2:26-27.) It is not the Court’s obligation to review the FAC in an effort to find support for Auberge’s argument that it fails to state a claim for sexual harassment. (See *Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal. App. 4th 927, 934 [“Rules of Court rule 3.1113 rests on a policy-based allocation of resources, preventing the trial court from being cast as a tacit advocate for the moving party’s theories by freeing it from any obligation to comb the record and the law for factual and legal support that a party has failed to identify or provide”].)

C. CONCLUSION

For the foregoing reasons, the Motion to compel Plaintiff to arbitrate her claims against Auberge is DENIED.

[2] DEFENDANT AUBERGE RESORTS LLC’S MOTION TO STAY PLAINTIFF’S FIRST AMENDED COMPLAINT

TENTATIVE RULING: The motion is MOOT.

Defendant Auberge Resorts LLC (Auberge) moves, pursuant to Code of Civil Procedure section 1281.4, for an order staying the case pending resolution of the arbitration in the action filed by Plaintiff Jessica Fernandez.

In light of the concurrent ruling on Auberge's Motion to Compel Arbitration, the instant Motion is MOOT.

PROBATE CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Conservatorship of James Edward Zabriskie

23PR000103

- [1] SECOND ACCOUNT AND REPORT OF CONSERVATOR; PETITION FOR ALLOWANCE OF FEES TO CONSERVATOR OF PERSON AND ESTATE AND ATTORNEY FOR CONSERVATOR
- [2] REVIEW HEARING

TENTATIVE RULING: The Petition is GRANTED, including fees as prayed. After a review of the matter, the Court finds the Conservator is acting in the best interest of the Conservatee. Thus, the matter is set for a Review – Biennial and for an Accounting in two years on July 28, 2028, at 8:30 a.m. in Dept. B. All accounting documents must be filed at least 30 days prior to the hearing. The Court Investigator shall prepare a biennial investigator report for the next hearing date. The Clerk is directed to send notice to the parties.

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Estate of Karl J Porter

24PR000279

REPORT OF ADMINISTRATOR, PETITION FOR FINAL DISTRIBUTION AND FOR STATUTORY ATTORNEY'S FEES WITH WAIVER OF ACCOUNT (filed 2/13/26)

TENTATIVE RULING: The petition is GRANTED, including fees as prayed.

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Estate of James E Lough

26PR000055

PETITION FOR INSTRUCTION TO REVOKE TRUST BY ITS OWN TERMS

APPEARANCE REQUIRED. The Petition is in order and Petitioner has submitted evidence which, *if the Petition is uncontested*, is sufficient to *prima facie* support the requested relief. (See Prob. Code § 1022.) However, all interested parties have the right to appear and object to the Petition orally or in writing at the hearing. (See Prob. Code § 1043.) If no one appears to oppose the petition, the Court intends to grant the Petition as prayed.

CIVIL LAW & MOTION CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Whitney Crow v. Puneet Singh et al

23CV001513

MOTION TO STAY CROSS-COMPLAINT

TENTATIVE RULING: The motion is DENIED.

Defendant and Cross-Defendant Isaac Al Ghazali moves, pursuant to Code of Civil Procedure § 128, subdivision (a)(8), for an order staying the cross-complaint filed on April 2, 2026, by Cross-Complainant Puneet Singh, Eshwaramma, Inc. Laxami, Inc., and Durga MA, Inc. (Subject Cross-Complaint) “until the family court determines the characterization of, and the parties’ respective interests in, the businesses at issue in the related dissolution, In re Marriage of SINGH and AL GHAZALI, Napa County Superior Court Case No. 25FL000156.” (Notice of Motion at 1:23-2:1.) In the alternative, Mr. Al Ghazali requests an order staying all civil discovery and discovery-related motion practice for the same period. (See Notice of Motion.) Mr. Al Ghazali so moves on grounds that “[t]hose crossclaims cannot fairly be decided until the Family Law Court resolves two questions that control them and that are squarely in dispute: who owns the three stores at the center of this case, and what [Mr. Al Ghazali’s] role in those stores was.” (Support Memo at 1:20-22.)

Mr. Al Ghazali’s assertion that ownership of the three stores is an issue in the family law matter is consistent with the nature of family law proceedings. However, Mr. Al Ghazali fails to persuade the Court that the questions of (1) whether he is an owner of one or more of the stores, and/or (2) whether he has a right to profits from operations of the stores, are at issue in the instant litigation.

He asserts that “[Ms. Singh’s] factual allegations are inexorably intertwined with breach of fiduciary duties as defined in the Family Code and which are before the Family Law court.” (Support Memo at 4:15-16.) Mr. Al Ghazali fails, however, to support the assertion by, for example, citing to pleadings in the family law action. (See *Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal. App. 4th 927, 934 [“Rules of Court rule 3.1113 rests on a policy-based allocation of resources, preventing the trial court from being cast as a tacit advocate for the moving party’s theories by freeing it from any obligation to comb the record and the law for factual and legal support that a party has failed to identify or provide”].)

This failure is material as, generally, the fiduciary duties at issue in family law matters are those arising from the spousal relationship. Mr. Al Ghazali acknowledges this by arguing that “[w]here the conduct alleged concerns community-property businesses and community funds during the marriage, the governing duty is the mutual fiduciary duty spouses owe one another under Family Code § 721.” (Support Memo at 5:10-13.) He fails, however, to cite to any allegation in the subject Cross-Complaint alleging breach of these *spousal* fiduciary duties.

Rather, through the subject Cross-Complaint, Ms. Singh and the entity Cross-Complainants allege fiduciary duties arising from Mr. Al Ghazali’s role as an officer, employee,

and/or manager of one or more of the stores. (See *id.* at ¶¶ 72-73, 82, 121-122, 132-133.) Mr. Al Ghazali fails to suggest that any of *these* alleged fiduciary duties are at issue in the family law action.

Finally, the Court notes that the original Complaint in the action was filed nearly three years ago. Particularly in light of suggestions that discovery has not yet commenced, the Court is growing concerned about the age of the action. (See, for example, Code Civ. Proc., § 583.410, *et seq.*)

For the forgoing reasons, the Motion is DENIED.

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Julianne Wurm v. James Pitkow et al

24CV000921

**MOTION FOR ORDER SUBSTITUTING SUCCESSOR IN INTEREST FOR DECEASED
DEFENDANT AND CROSS-COMPLAINANT JAMES PITKOW**

TENTATIVE RULING: The motion is GRANTED.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court *or* emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PROCEDURAL MATTER

Defendants and Cross-Complainants Wild Horse Valley Property LLC and James Pitkow (“Decedent”), by and through their attorney of record, Flash Gordon, move, pursuant to Code of Civil Procedure sections 377.11, 377.31, 377.32, and 377.41,¹ and Probate Code sections 19001 and 19008, for an order substituting Martin B. Pitkow Jr., as successor in interest to Decedent for all purposes in the proceedings pending before this Court, including Decedent’s defense of Plaintiff’s complaint and Decedent’s cross-complaint.

B. PARTIES’ CONTENTIONS

Decedent died on July 14, 2026. (Declaration of Martin B. Pitkow Jr. (“M. Pitkow Decl.”), filed July 31, 2026, ¶ 3.) Defendants argue that Decedent’s brother, Martin B. Pitkow Jr., as successor trustee of the James E. Pitkow Trust, dated November 19, 2022, is Decedent’s

¹ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

successor in interest for all purposes in the proceedings pending before the Court, including both his capacity as a Defendant and Cross-Complainant. (*Id.*, ¶¶ 4-7.) Defendants clarify that they do not seek an order substituting Martin B. Pitkow Jr. as a party to the pending appeal, as Defendants note that they are separately moving for such relief in the Court of Appeal, pursuant to Rules of Court, rule 8.36(a). (Mem., 8:11-17.)

Plaintiff filed a “Limited Opposition.” Plaintiff argues that the motion should be denied without prejudice because the M. Pitkow Decl. does not comply with section 377.32 because (1) it is not signed under penalty of perjury, and (2) it does not establish that Martin Pitkow Jr. succeeded to the claims because copies of James Pitkow’s estate planning documents are not attached. Alternatively, Plaintiff requests the Court defer ruling on the motion and require Defendants to file a code-compliant declaration and competent evidence establishing the claimed succession. Finally, Plaintiff takes issue with the proposed order’s language stating that Martin B. Pitkow Jr. is substituted as successor in interest for purposes of the pending appeal.

C. DISCUSSION

As an initial matter, the proposed order filed with the Court contains no language regarding Martin B. Pitkow Jr. being substituted in for purposes of the appeal. Rather, the proposed order expressly provides: “This order does not effect substitution of parties for purposes of the pending appeal (Court of Appeal No. A176402). Substitution for that purpose is being sought separately by motion in the Court of Appeal pursuant to California Rules of Court, rule 8.36(a).” (7/31/26 Proposed Order, ¶ 4.) Thus, Plaintiff’s purported challenge to any such language is moot.

“On motion after the death of a person who commenced an action or proceeding, the court *shall* allow a pending action or proceeding that does not abate to be continued by the decedent’s personal representative or, if none, by the decedent’s successor in interest.” (§ 377.31. Emphasis added.) Likewise, “[o]n motion, the court *shall* allow a pending action or proceeding against the decedent that does not abate to be continued against the decedent’s personal representative or, to the extent provided by statute, against the decedent’s successor in interest.” (§ 377.41. Emphasis added.) A “‘decedent’s successor in interest’ means the beneficiary of the decedent’s estate or other successor in interest who succeeds to a cause of action or to a particular item of the property that is the subject of a cause of action.” (§ 377.11.) Section 377.32 provides the contents that are required to be in a declaration by a decedent’s successor in interest, in order to establish that capacity.

Thus, Section 377.31 mandates the Court to allow Decedent’s cross-complaint to continue by successor in interest Martin B. Pitkow Jr. upon sufficient showing under section 377.32. (See Cal. Law Revision Com. com., Code Civ. Proc., § 377.31 [“the personal representative or successor in interest has an absolute right to be substituted for the decedent”]; *Pepper v. Sup. Ct.* (1977) 76 Cal.App.3d 252, 260-61 [right of substitution “is absolute if the cause of action survives death”; trial court abused its discretion in refusing to permit a decedent’s personal representative to continue a pending action].)

Here, while Plaintiff is correct that the M. Pitkow Decl., filed on July 31, 2026 with the moving papers, omits the required “penalty of perjury” language, the M. Pitkow Decl., previously filed and served on July 29, 2026 (containing the same substantive information as that included in the July 31 declaration) includes the “penalty of perjury” language. Moreover, Defendants submitted, in Reply, an amended declaration which contains the “penalty of perjury” language. For these reasons, the Court does not find that the M. Pitkow Decl. fails to comply with section 377.32 because it is not signed under penalty of perjury.

With respect to Plaintiff's second argument, the Court finds that the M. Pitkow Decl., filed on July 27 and August 20, sufficiently establish Martin B. Pitkow Jr.'s entitlement to substitution. Moreover, the Amended M. Pitkow Decl. submitted in Reply attaches as Exhibit B a copy of James Pitkow's Certification of Trust, in case there was any doubt as to the facts contained within the prior declaration.

Based on the foregoing, the Court is compelled to allow Decedent's cross-complaint to continue by his successor in interest Martin B. Pitkow Jr.

Section 377.41 mandates the Court to allow Martin B. Pitkow Jr. to continue Decedent’s defense to Plaintiff’s complaint “to the extent provided by statute.” Here, the applicable statute is Probate Code section 19001. “Upon the death of a settlor, the property of the deceased settlor that was subject to the power of revocation at the time of the settlor’s death is subject to the claims of creditors of the deceased settlor’s probate estate and to the expenses of administration of the probate estate to the extent that the deceased settlor’s probate estate is inadequate to satisfy those claims and expenses.” (Prob. Code, § 19001, subd. (a).)

Here, Defendants show that Decedent's trust was revocable until he passed. (See Reply M. Pitkow Decl., filed 8/20/26, Exh. B.) Moreover, Defendants show that no administration of Decedent's estate has been opened, and Decedent's last will was a pour-over will directing that all of Decedent's individually held assets and liabilities, including Decedent's sole membership interest in Wild Horse Valley Property LLC, pass to the trust upon Decedent's death. (*Id.*, ¶ 5.) Together, this establishes that there are no estate assets, such that Decedent's estate is inadequate to satisfy any creditor's claims and expenses, and that Decedent's trust assets are subject to the claims of creditors.

Based on the foregoing, the Court is compelled to allow Martin B. Pitkow Jr. to continue Decedent's defense to Plaintiff's complaint.

[illegible]

****at 9:30 a.m.****

**Metropolitan Wines LLC et al v. Allied World Assurance
Company Inc. et al**

24CV000739

PLAINTIFF’S MOTION FOR SUMMARY JUDGMENT OF ALLIED WORLD ASSURANCE COMPANY (U.S) INC’S SECOND AMENDED CROSS COMPLAINT FOR RESCISSION, SUMMARY ADJUDICATION OF PLAINTIFF’S SECOND AFFIRMATIVE DEFENSE TO THE RESCISSION CAUSE OF ACTION, AND SUMMARY ADJUDICATION OF ALLIED’S FIFTH THROUGH SEVENTH AFFIRMATIVE DEFENSES TO PLAINTIFF’S BAD FAITH CAUSE OF ACTION

TENTATIVE RULING: The motion is DENIED.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PRELIMINARY MATTERS

1. Nature of Motion

Plaintiff and Cross-Defendant Metropolitan Wines LLC (Metropolitan) moves, pursuant to Code of Civil Procedure §437c, for: (1) summary judgment on the Second Amended Cross-Complaint for Rescission (SACC) filed by Defendant and Cross-Complainant Allied World Assurance Company (U.S.) Inc. (AWAC); (2) summary adjudication on Metropolitan’s Second Affirmative Defense to the SACC; and (3) summary adjudication on AWAC’s Fifth through Seventh Affirmative Defenses to Metropolitan’s cause of action for insurance bad faith against Allied.

2. Nature of the Pleadings

The gravamen of the operative Third Amended Complaint (TAC) is that Metropolitan has been injured as a result of decisions made by AWAC regarding insurance coverage for damage to property, located in St. Helena California, stemming from the 2020 Glass Fire.

Through its Answer, AWAC asserts and alleges, as a Fifth Affirmative Defense, that “Plaintiff’s claims are barred in whole or in part because Plaintiff has alleged it suffered loss of business personal property (‘BPP’) at 773 Sunnyside Road, St. Helena, CA in the Glass Fire and has stated in verified discovery responses attached hereto as Exhibit A that this BPP loss exceeded \$200,000, but misrepresented in its application for the Allied World Policy that the value of BPP at this location was \$0.” (Answer to TAC at 2:26-3:4.) Through its Sixth Affirmative Defense, AWAC asserts and alleges that “[c]overage under the Allied World Policy

is void because Plaintiff concealed or misrepresented values in the Statement of Values ('SOV') submitted on behalf of Plaintiff as part of the application for the Allied World Policy.” (*Id.* at 3:7-9.) Through its Seventh Affirmative Defense, AWAC asserts and alleges that “Plaintiff has no right to recover damages in this action based in whole or in part on the Allied World Policy because Plaintiff concealed or misrepresented values in the SOV submitted on behalf of Plaintiff as part of the application for the Allied World Policy.” (*Id.* at 3:20-22.)

The gravamen of the SACC is that, through its application for the subject insurance policy, Metropolitan misrepresented, omitted, and/or concealed material information. AWAC asserts two causes of action; one for rescission of the policy *ab initio*, and the second for reimbursement of all payments made by AWAC to Metropolitan under that policy.

Through its Answer, Metropolitan generally denies the allegations of the SACC. It also asserts, as a Second Affirmative Defense, that “AWAC’s ability to recover anything on its Second Amended Cross-Complaint is limited by its agreements in the insurance policies issued to Metropolitan beginning in or about 2013 and continuing up through 2020. The Parties entered into an express agreement in each of the insurance policies during that time that provided that Metropolitan would agree to pay any additional premium for any error or omission Metropolitan made in determining the values provided to AWAC. The insurance policy drafted by AWAC expressly provides that any error or omission that was made by Metropolitan in determining or reporting values or in describing the covered property or covered location shall not void or impair coverage provided to Metropolitan. The insurance policy further provides that the limits of the insurance policy shall be increased by an additional \$100,000.” (Answer to SACC at 2:17-27.)

3. Evidentiary Objections

The Court rules on AWAC’s evidentiary objections as follows.

Objection No. 1-2: Each of these purported objections asserts legal argument and not evidentiary objection.

Objection No. 3-5: Discussed below.

Objection No. 6, 8-9: The Court declines to rule on the Objection as its subject matter is not relevant to the Court’s resolution of the issues raised by the Motion. (See Code Civ. Proc., § 437c, subd. (q) [“In granting or denying a motion for summary judgment or summary adjudication, the court need rule only on those objections to evidence that it deems material to its disposition of the motion. Objections to evidence that are not ruled on for purposes of the motion shall be preserved for appellate review.”])

Objection No. 7: OVERRULED. Where the contents of the document state the author(s) thereof, authentication may be established merely by a showing that the documents were produced by the opposing party through discovery. (See *Landale-Cameron Court, Inc. v. Ahonen* (2007) 155 Cal.App.4th 1401, 1409.)

B. LEGAL BACKGROUND

1. Summary Judgment Based on an Affirmative Defense

“A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit...” (Code Civ. Proc., § 437c, subd. (a)(1).) The party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850 (*Aguilar*).) “‘Material facts’ are facts that relate to the cause of action . . . that is the subject of the motion and that could make a difference in the disposition of the motion.” (Rules of Court, rule 3.1350, subd. (a)(2).)

The moving party also bears an initial burden of production. A moving defendant may satisfy this burden by making a prima-facie showing sufficient to support every element of an affirmative defense. “The burden on a defendant moving for summary judgment based upon the assertion of an affirmative defense is different than the burden to show that one or more elements of the plaintiff’s cause of action cannot be established. Instead of merely submitting evidence to negate a single element of the plaintiff’s cause of action, or offering evidence such as vague or insufficient discovery responses that the plaintiff does not have evidence to create an issue of fact as to one or more elements of his or her case . . . ‘the defendant has the initial burden to show that undisputed facts support each element of the affirmative defense’ . . . If the defendant does not meet this burden, the motion must be denied. [Citation.]” (*Consumer Cause, Inc. v. Smilecare* (2001) 91 Cal.App.4th 454, 467-68.)

“In ruling on the motion, the trial court views the evidence and inferences therefrom in the light most favorable to the opposing party.” (*Collin v. CalPortland Co.* (2014) 228 Cal.App.4th 582, 588.)

2. Summary Adjudication, by Plaintiff of Defendant’s Affirmative Defenses

“A party may move for summary adjudication as to . . . one or more affirmative defenses . . . if the party contends . . . that there is no merit to an affirmative defense as to any cause of action . . . A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (Code Civ. Proc., § 437c, subd. (f)(1).)

C. LEGAL ANALYSIS

Metropolitan advances the same argument in support of each of the forms of relief sought by the Motion. Metropolitan concedes that “[a]n insurer may seek the to [sic] rescind an insurance policy if an insured makes a material misstatement in an insurance application.” (Support Memo at 6:25-26 citing *Mitchell v. United National Ins. Co.* (2005) 127 Cal.App.4th 457, 468.) Metropolitan argues that the policy at issue here contains a “safeguard” provision reflecting an agreement between AWAC and Metropolitan to contract around AWAC’s right to rescind based on the material misstatements and/or omissions alleged to have been made in the application for the policy at issue. (See *id.* at 7:5-14.) The subject policy provision states, “[a]ny unintentional error or omission you make in determining or

reporting values or in describing the covered property or covered location shall not void or impair coverage provided by this Coverage Form.” (See Declaration of Dylan Schaffer, Section III, subd. (29)(a), at p. 17 of 28.) Specifically, while Metropolitan concedes that its application for the subject insurance policy contained omissions, it contends that the omission was inadvertent. (See, *e.g.*, Support Memo at 10:25-11:1.)

It appears uncontroverted that operation of the subject “savings clause” is conditioned on any omission being unintentional. The Court finds that Metropolitan fails to carry its initial burden, on the instant Motion, of making a prima facie showing that the omission of values from the application was unintentional.

The only evidence submitted on this point is the Declaration of Brian Fleury at paragraphs 4-10 (Fleury Decl.). Mr. Fleury specifically declares that “I was primarily responsible for working with our insurance agent, Malloy Imrie & Vasconi Insurance Services (Malloy) to obtain property insurance for the business” and that “I do not specifically recall providing valuations for wine stock, business personal property, or buildings, to Malloy as part of the 2020 renewal process.” (*Id.* at ¶¶ 4-5.) He then declares that he “*believe[s]* the values provided by Malloy to Allied were based on information received from me.” (*Id.* at ¶ 8. *Italics added*) He further declares that “[t]o the extent the valuations provided to Allied by Malloy in the renewal process for wine stock, business personal property, or buildings were wrong, the error *was likely due* to incorrect information I provided to Malloy.” (*Id.* at ¶ 9.) In the context of his declared lack of memory of the events (see *id.* at ¶ 5), the Court does not find that the conclusory statement “I did not intentionally provide Malloy erroneous valuations for wine stock, business personal property, or buildings” is adequately supported. (*Id.* at ¶ 10.) Put another way, since Mr. Fleury declares that he does not recall providing valuations, there is insufficient evidence to show that he has personal knowledge to support his assertion that any error contained in those valuations – valuations that he “*believe[s]*” Malloy received from him – was unintentional.

Even assuming, *arguendo*, that the foregoing evidence were sufficient to make a prima facie showing that the subject omissions were unintentional, the Court finds that AWAC has produced evidence sufficient to create a triable question of fact on the issue. (See Declaration of David C. Capell at: Exh. 9, 45:15-47:10; Exhs. 11-13.) Specifically, given that the *only* evidence that the omission was unintentional is in the form of an unsupported conclusory statement to that effect by Mr. Fleury, the evidence attacking his veracity is sufficient to create a triable question of fact.

Based on the foregoing, the Motion is DENIED.